



Cheyenne Fire & Rescue

Office: 415 W. 18th Street
Mailing Address: 2101 O'Neil Avenue
Cheyenne WY 82001
307-637-6311



MEMORANDUM

To: Mayor Patrick Collins, and City Council

Date: 9/7/2022

From: John Kopper
Fire Chief

Reference: Contract Modification #1 to Contract #7504 for Fire Station Guaranteed Maximum Price (GMP)

1. Attached to this memo is Contract Modification #1 to Contract #7504 (AIA Document A133 – 2019 Exhibit A, Guaranteed Maximum Price Amendment).
2. The intended purpose of this Contract Modification is to get total price for the construction costs of three fire stations.
3. Combined costs for GMP are \$20,497,716.00

Funding:	032-16-1640-41-43804	(2021 6 th Penny Ballot)	\$15,761,000.00
	030-16-1640-41-43804	(2017 6 th Penny Overage)	\$5,683,685.00

Respectfully,

A handwritten signature in black ink, appearing to be "John Kopper".

John Kopper
Fire Chief

Fire Chief John Kopper
jkopper@cheyennecity.org

CHEYENNE EMERGENCY RESPONSE FACILITY

Project Location: CHEYENNE, WYOMING
 Estimate Type: GMP
 Project Duration: 11 Months
 Project SF: 11,400 EACH STATION
 Estimator: FLANAGAN

Revision: GMP
 Due Date: 9/6/2022

Description		CERF GMP TOTAL
Division 01	GENERAL REQUIREMENTS	\$ 1,253,598
Division 02	EXISTING CONDITIONS	\$ 174,370
Division 03	CONCRETE	\$ 1,260,297
Division 04	MASONRY	\$ 1,434,831
Division 05	METALS	\$ 1,023,300
Division 06	WOOD & PLASTIC	\$ 591,981
Division 07	THERMAL & MOISTURE PROTECTION	\$ 1,797,669
Division 08	DOORS & WINDOWS	\$ 1,194,573
Division 09	FINISHES	\$ 1,871,235
Division 10	SPECIALTIES	\$ 136,836
Division 11	EQUIPMENT	\$ 227,349
Division 12	FURNISHINGS	\$ 54,612
Division 13	SPECIAL SYSTEMS	\$ -
Division 14	CONVEYING SYSTEMS	\$ -
Division 21	FIRE SUPPRESSION	\$ 146,985
Division 22	PLUMBING	\$ 1,103,130
Division 23	HVAC	\$ 1,023,696
Division 26	ELECTRICAL	\$ 1,919,159
Division 27	COMMUNICATIONS	\$ 53,244
Division 28	ELECTRONIC SAFETY & SECURITY	\$ 45,000
Division 31	EARTHWORK	\$ 977,657
Division 32	EXTERIOR IMPROVEMENTS	\$ 1,719,656
Division 33	UTILITIES	\$ 327,255
SUBTOTAL		\$ 18,336,433
BUILDING PERMIT & PLAN CHECK FEE	BY OTHERS	\$ -
BID CONTINGENCY	2.00%	\$ 366,523
ANTICIPATED ESCALATION	3.00%	\$ 549,783
CONTRACTOR'S CONTINGENCY	2.00%	\$ 366,523
GENERAL LIABILITY INSURANCE	BY FCI	\$ 184,384
BUILDER'S RISK INSURANCE	BY FCI	\$ 22,536
PERFORMANCE AND PAYMENT BOND	BY FCI	\$ 122,923
PRECONSTRUCTION FEE	LUMP SUM	\$ 10,000
FCI OVERHEAD AND FEE	2.70%	\$ 538,611
ESTIMATE TOTAL:		\$ 20,497,716

AIA Document A133™ – 2019 Exhibit A

Guaranteed Maximum Price Amendment

APPROVED

By Stefanie Boster at 10:54 am, Sep 07, 2022

This Amendment dated the Twenty Sixth day of September in the year Two Thousand Twenty Two, is incorporated into the accompanying AIA Document A133™–2019, Standard Form of Agreement Between Owner and Construction Manager as Constructor where the basis of payment is the Cost of the Work Plus a Fee with a Guaranteed Maximum Price dated the Thirteenth day of April in the year Two Thousand Twenty Two (the "Agreement")

(In words, indicate day, month, and year.)

for the following **PROJECT**:

(Name and address or location)

Emergency Response Facility Projects
Fire Station #3, #5 & New Station
Cheyenne, WY 82001

THE OWNER:

(Name, legal status, and address)

City of Cheyenne
2101 O'Neil Avenue, Room 309
Cheyenne, WY 82001

THE CONSTRUCTION MANAGER:

(Name, legal status, and address)

FCI Constructors of Wyoming, LLC
1820 Dillon Avenue, Suite 200A
Cheyenne, WY 82001

ADDITIONS AND DELETIONS:

The author of this document has added information needed for its completion. The author may also have revised the text of the original AIA standard form. An *Additions and Deletions Report* that notes added information as well as revisions to the standard form text is available from the author and should be reviewed. A vertical line in the left margin of this document indicates where the author has added necessary information and where the author has added to or deleted from the original AIA text.

This document has important legal consequences. Consultation with an attorney is encouraged with respect to its completion or modification.

AIA Document A201™–2017, General Conditions of the Contract for Construction, is adopted in this document by reference. Do not use with other general conditions unless this document is modified.

TABLE OF ARTICLES

- A.1 GUARANTEED MAXIMUM PRICE**
- A.2 DATE OF COMMENCEMENT AND SUBSTANTIAL COMPLETION**
- A.3 INFORMATION UPON WHICH AMENDMENT IS BASED**
- A.4 CONSTRUCTION MANAGER'S CONSULTANTS, CONTRACTORS, DESIGN PROFESSIONALS, AND SUPPLIERS**

ARTICLE A.1 GUARANTEED MAXIMUM PRICE

§ A.1.1 Guaranteed Maximum Price

Pursuant to Section 3.2.6 of the Agreement, the Owner and Construction Manager hereby amend the Agreement to establish a Guaranteed Maximum Price. As agreed by the Owner and Construction Manager, the Guaranteed Maximum Price is an amount that the Contract Sum shall not exceed. The Contract Sum consists of the Construction Manager's Fee plus the Cost of the Work, as that term is defined in Article 6 of the Agreement.

§ A.1.1.1 The Contract Sum is guaranteed by the Construction Manager not to exceed Twenty Million Four Hundred Ninety-seven Thousand Seven Hundred Sixteen Dollars

and Zero Cents (\$20,497,716.00), subject to additions and deductions by Change Order as provided in the Contract Documents.

§ A.1.1.2 Itemized Statement of the Guaranteed Maximum Price. Provided below is an itemized statement of the Guaranteed Maximum Price organized by trade categories, including allowances; the Construction Manager's contingency; alternates; the Construction Manager's Fee; and other items that comprise the Guaranteed Maximum Price as defined in Section 3.2.1 of the Agreement.

(Provide itemized statement below or reference an attachment.)

Attachment A

§ A.1.1.3 The Construction Manager's Fee is set forth in Section 6.1.2 of the Agreement.

§ A.1.1.4 The method of adjustment of the Construction Manager's Fee for changes in the Work is set forth in Section 6.1.3 of the Agreement.

§ A.1.1.5 Alternates

§ A.1.1.5.1 Alternates, if any, included in the Guaranteed Maximum Price:

Item	Price
N/A	

§ A.1.1.5.2 Subject to the conditions noted below, the following alternates may be accepted by the Owner following execution of this Exhibit A. Upon acceptance, the Owner shall issue a Modification to the Agreement.

(Insert below each alternate and the conditions that must be met for the Owner to accept the alternate.)

Item	Price	Conditions for Acceptance
N/A		

§ A.1.1.6 Unit prices, if any:

(Identify the item and state the unit price and quantity limitations, if any, to which the unit price will be applicable.)

Item	Units and Limitations	Price per Unit (\$0.00)
N/A		

ARTICLE A.2 DATE OF COMMENCEMENT AND SUBSTANTIAL COMPLETION

§ A.2.1 The date of commencement of the Work shall be:

(Check one of the following boxes.)

☒ The date of execution of this Amendment.

☐ Established as follows:

(Insert a date or a means to determine the date of commencement of the Work.)

If a date of commencement of the Work is not selected, then the date of commencement shall be the date of execution of this Amendment.

§ A.2.2 Unless otherwise provided, the Contract Time is the period of time, including authorized adjustments, allotted in the Contract Documents for Substantial Completion of the Work. The Contract Time shall be measured from the date of commencement of the Work.

§ A.2.3 Substantial Completion

§ A.2.3.1 Subject to adjustments of the Contract Time as provided in the Contract Documents, the Construction Manager shall achieve Substantial Completion of the entire Work:

(Check one of the following boxes and complete the necessary information.)

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User Notes: (1836200824)

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[] Not later than () calendar days from the date of commencement of the Work.

[X] By the following date: November 1, 2023

§ A.2.3.2 Subject to adjustments of the Contract Time as provided in the Contract Documents, if portions of the Work are to be completed prior to Substantial Completion of the entire Work, the Construction Manager shall achieve Substantial Completion of such portions by the following dates:

Portion of Work	Substantial Completion Date
N/A	

§ A.2.3.3 If the Construction Manager fails to achieve Substantial Completion as provided in this Section A.2.3, liquidated damages, if any, shall be assessed as set forth in Section 6.1.6 of the Agreement.

ARTICLE A.3 INFORMATION UPON WHICH AMENDMENT IS BASED

§ A.3.1 The Guaranteed Maximum Price and Contract Time set forth in this Amendment are based on the Contract Documents and the following:

§ A.3.1.1 The following Supplementary and other Conditions of the Contract:

Document	Title	Date	Pages
N/A			

§ A.3.1.2 The following Specifications:

(Either list the Specifications here, or refer to an exhibit attached to this Amendment.)

Specifications issued by Plan One Architects dated July 22, 2022 and Addendums 2 & 3 dated August 17 & 18, 2022

Section	Title	Date	Pages
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§ A.3.1.3 The following Drawings:

(Either list the Drawings here, or refer to an exhibit attached to this Amendment.)

Drawings issued by Plan One Architects dated July 22, 2022 and Addendums 2 & 3 dated August 17 & 18, 2022

Number	Title	Date
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§ A.3.1.4 The Sustainability Plan, if any:

(If the Owner identified a Sustainable Objective in the Owner's Criteria, identify the document or documents that comprise the Sustainability Plan by title, date and number of pages, and include other identifying information. The Sustainability Plan identifies and describes the Sustainable Objective; the targeted Sustainable Measures; implementation strategies selected to achieve the Sustainable Measures; the Owner's and Construction Manager's roles and responsibilities associated with achieving the Sustainable Measures; the specific details about design reviews, testing or metrics to verify achievement of each Sustainable Measure; and the Sustainability Documentation required for the Project, as those terms are defined in Exhibit C to the Agreement.)

Title	Date	Pages
N/A		

Other identifying information:

§ A.3.1.5 Allowances, if any, included in the Guaranteed Maximum Price:

(Identify each allowance.)

Item

Price

§ A.3.1.6 Assumptions and clarifications, if any, upon which the Guaranteed Maximum Price is based:
(Identify each assumption and clarification.)

Cheyenne Emergency Response assumptions and clarifications forthcoming pending mutual approval between FCI Constructors of Wyoming, Plan One Architects & design consultants, and City of Cheyenne / Cheyenne Fire Rescue.

§ A.3.1.7 The Guaranteed Maximum Price is based upon the following other documents and information:
(List any other documents or information here, or refer to an exhibit attached to this Amendment.)

N/A

ARTICLE A.4 CONSTRUCTION MANAGER'S CONSULTANTS, CONTRACTORS, DESIGN PROFESSIONALS, AND SUPPLIERS

§ A.4.1 The Construction Manager shall retain the consultants, contractors, design professionals, and suppliers, identified below:
(List name, discipline, address, and other information.)

N/A

This Amendment to the Agreement entered into as of the day and year first written above.

OWNER (Signature)

(Printed name and title)

CONSTRUCTION MANAGER (Signature)

Becket Hinson, Vice President

(Printed name and title)

Init.

Additions and Deletions Report for AIA® Document A133™ – 2019 Exhibit A

This Additions and Deletions Report, as defined on page 1 of the associated document, reproduces below all text the author has added to the standard form AIA document in order to complete it, as well as any text the author may have added to or deleted from the original AIA text. Added text is shown underlined. Deleted text is indicated with a horizontal line through the original AIA text.

Note: This Additions and Deletions Report is provided for information purposes only and is not incorporated into or constitute any part of the associated AIA document. This Additions and Deletions Report and its associated document were generated simultaneously by AIA software at 12:04:15 ET on 09/07/2022.

PAGE 1

This Amendment dated the Twenty Sixth day of September in the year ~~Two Thousand Twenty Two~~, is incorporated into the accompanying AIA Document A133™–2019, Standard Form of Agreement Between Owner and Construction Manager as Constructor where the basis of payment is the Cost of the Work Plus a Fee with a Guaranteed Maximum Price dated the Thirteenth day of April in the year Two Thousand Twenty Two (the "Agreement")

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§ A.1.1.1 The Contract Sum is guaranteed by the Construction Manager not to exceed ~~(\$—)~~, Twenty Million Four Hundred Ninety-seven Thousand Seven Hundred Sixteen Dollars and Zero Cents (\$20,497,716.00), subject to additions and deductions by Change Order as provided in the Contract Documents.

PAGE 2

Attachment A

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N/A

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N/A

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N/A

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PAGE 3 ☒ The date of execution of this Amendment.

☒ By the following date: November 1, 2023

...

N/A

...

N/A

...

Specifications issued by Plan One Architects dated July 22, 2022 and Addendums 2 & 3 dated August 17 & 18, 2022

...

Drawings issued by Plan One Architects dated July 22, 2022 and Addendums 2 & 3 dated August 17 & 18, 2022

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PAGE 4 N/A

Cheyenne Emergency Response assumptions and clarifications forthcoming pending mutual approval between FCI Constructors of Wyoming, Plan One Architects & design consultants, and City of Cheyenne / Cheyenne Fire Rescue.

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N/A

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N/A

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Becket Hinson, Vice President

Certification of Document's Authenticity

AIA® Document D401™ – 2003

I, Becket Hinson, Vice President, hereby certify, to the best of my knowledge, information and belief, that I created the attached final document simultaneously with its associated Additions and Deletions Report and this certification at 12:04:15 ET on 09/07/2022 under Order No. 2114295968 from AIA Contract Documents software and that in preparing the attached final document I made no changes to the original text of AIA® Document A133™ – 2019 Exhibit A, Guaranteed Maximum Price Amendment, as published by the AIA in its software, other than those additions and deletions shown in the associated Additions and Deletions Report.

(Signed)

(Title)

(Dated)